

Court No. - 39

Case :- CRIMINAL MISC. WRIT PETITION No. - 10236 of 2014

Petitioner :- Javed Ali

Respondent :- State Of U.P. & 2 Others

Counsel for Petitioner :- Sanjay Kumar

Counsel for Respondent :- Govt. Advocate,Pranjal Mehrotra

Hon'ble V.K. Shukla,J.

Hon'ble Vivek Kumar Birla,J.

Heard learned counsel for the petitioner, learned Additional Government Advocate for the State and Sri Pranjal Mehrotra, learned counsel appearing for the opposite party no. 3.

Petitioner has approached this Court with a request to quash the First Information Report dated 27.5.2014, registered as Case Crime No. 264 of 2014, under Section 135 of Electricity Act, Police Station-Amroha Nagar, District Amroha, J.P. Nagar.

Learned counsel for the petitioner is contending before this Court that no offence under section 135 of Electricity Act is made out against the petitioner, and even otherwise same is compundable.

The request made by the petitioner has been resisted by learned AGA and Sri Pranjal Mehrotra, learned advocate, submits that offence has been committed and compounding, if any, is governed under the provisions of the U.P. Electricity Supply Code, 2005.

This Court has the occasion to peruse the FIR in question and prima-facie perusal of the same does reflect disclosure of cognizable offence, in view of this, no case for interference is made out.

However, petitioner may seek remedy as is provided under the Electricity Supply Code, 2005.

The writ petition stands disposed of.

Order Date :- 17.6.2014

Puspendra